

Court No. - 32

Case :- WRIT - C No. - 10222 of 2019

Petitioner :- M/S Shafi Ata Chaki Tajpur And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shri Krishna Mishra, Sharad Chand Rai

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, Pankaj Srivastava

Hon'ble Shashi Kant Gupta,J.

Hon'ble Pradeep Kumar Srivastava,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(1) Issue writ, order or direction in the nature of mandamus commanding the respondent no. 4- Executive Engineer, Dakshinanchal Electricity Distribution Nigam Limited, Electricity Parikshan Khand Auraiya to decide the application dated 14.01.2019, submitted by the petitioner no. 2 for correction of Electricity Bill, within stipulated period as may be fixed by this Hon'ble Court.

(II) Issue writ order or direction in the nature of mandamus commanding the respondents not to interfering in the peaceful functioning of the petitioners from running the Ata Chakki during the pendency of the application dated 14.01.2019 submitted by the petitioner no. 2 for correction of Electricity Bill. "

Heard learned counsel for the petitioners, Sri Baleshwar Chaturvedi, learned counsel for the Electricity Department and perused the record.

The petitioners are raising dispute with regard to the correctness of the bill issued against them.

It is open to the petitioner to take recourse to the remedy provided to them under Clause 6.5 of the

U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioners approach the appropriate authority for redressal of their grievance within 10 days from today, their application may be considered and decided by the said authority in accordance with law within 20 days from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioners.

For a period of 30 days, no coercive action shall be taken against the petitioners.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 30.3.2019

Arun